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TENTATIVE RULING

July 31, 2026

26SMCV01547 (Hansei Solutions LLC

v. Freeman Recovery Center, LLC, et. al.)

RELEVANT BACKGROUND

On March 23, 2026, plaintiff Hansei Solutions, LLC (Plaintiff) filed the complaint against defendant Freeman Recovery Center, LLC (Defendant). Relevant to the instant motion, Plaintiff is a Delaware limited liability company with its principal place of business in Franklin, Tennessee. (Compl. ¶ 6.) Defendant is a Tennessee limited liability company with its principal place of business in Dickson, Tennessee. (Id. ¶ 7.)

INSTANT MOTIONS

On June 16, 2026, Defendant filed the instant motion to quash for lack of personal jurisdiction. Plaintiff filed an opposition, and Defendant filed a reply.

On June 16, 2026, Defendant filed an ex parte application for right to attach order, which was granted by the Court on June 17, 2026. On June 24, 2026, Defendant filed the notice of application and hearing for writ of attachment. Plaintiff filed an opposition, and Defendant filed a reply.

On July 17, 2026, the Court continued the hearing on the instant motions from July 17 to July 31, 2026 on the basis that the parties filed several documents on July 15 and 16, 2026.

EVIDENTIARY OBJECTIONS

The Court does not rule on the objections regarding evidence submitted in support of the motion for right to attached order because, as set forth below, the motion is denied as moot due to the Court's ruling on the motion to quash.

DISCUSSION

I. MOTION TO QUASH – PERSONAL JURISDICTION

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion ... (1) to quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10, subd. (a).)

Personal jurisdiction may be either general or specific. (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 268-69.) Here, Plaintiff does not contend that general jurisdiction exists. Rather, Plaintiff argues that Defendant is subject to specific personal jurisdiction under the minimum-contacts analysis because it purposefully availed itself of California, the controversy arises out of and relates to those California contacts, and the exercise of jurisdiction is reasonable. (Opp at p. 1:10-12.) The Court therefore need only consider whether specific jurisdiction exists.

A.

Burden of Proof

When a defendant challenges jurisdiction through a motion to quash, the plaintiff bears the burden of demonstrating by a preponderance of evidence facts justifying the exercise of jurisdiction. (In re Auto. Antitrust Cases I & II (2005) 135 Cal. App. 4th 100, 110 ["Although the defendant is the moving party, the plaintiff must carry the initial burden

of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California.”))

“The plaintiff must do more than merely allege jurisdictional facts. It must present evidence sufficient to justify a finding that California may properly exercise jurisdiction over the defendant. [Citation.] The plaintiff must provide affidavits and other authenticated documents in order to demonstrate competent evidence of jurisdictional facts. Allegations in an unverified complaint are insufficient to satisfy this burden of proof. Declarations cannot be mere vague assertions of ultimate facts, but must offer specific evidentiary facts permitting a court to form an independent conclusion on the issue of jurisdiction.” (Ibid.)

Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable. (Ibid.; see also Vons Companies, Inc. v. Seabest Foods, Inc., (1996) 14 Cal.4th 434, 449.)

B.

Specific Jurisdiction

Specific jurisdiction involves a three-part test in California. “A court may exercise specific jurisdiction over a nonresident defendant only if: (1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the ‘controversy is related to or ‘arises out of’ [the] defendant's contacts with the forum’ [citation]; and (3) ‘the assertion of personal jurisdiction would comport with ‘fair play and substantial justice.’ [Citations].” (Pavlovich v. Superior Ct. (2002) 29 Cal. 4th 262, 269.)

“The purposeful availment inquiry...focuses on the defendant's intentionality. [Citation.] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court's jurisdiction based on’ his contacts with the forum.” (Pavlovich, supra, 29 Cal. 4th at p. 269.) “[T]he ‘purposeful availment’ requirement ensures that a defendant will not be haled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts [citations] or the ‘unilateral activity of another party or a third person.’ [Citations.]” (Ibid.)

a.

Contracts

"If the question is whether an individual's contract with an out-of-state party alone can automatically establish sufficient minimum contacts in the other party's home forum, we believe the answer clearly is that it cannot." (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 478.) Instead, "it is these factors—prior negotiations and contemplated future consequences, along with the terms of the contract and the parties' actual course of dealing—that must be evaluated in determining whether the defendant purposefully established minimum contacts within the forum." (Id. at pp. 478-479.)

"A contract with an out-of-state party does not automatically establish purposeful availment in the other party's home forum. [Citations.] Rather, a court must evaluate the contract terms and the surrounding circumstances to determine whether the defendant purposefully established minimum contacts within the forum." (Stone v. Tex. (1999) 76 Cal.App.4th 1043, 1048.)

As to defendants' contracts involving the forum state, the courts have considered the following factors to determine if defendants purposefully established minimum contacts: "prior negotiations and contemplated future consequences, along with the terms of the contract and the parties' actual course of dealing...." (Malone v. Equitas Reinsurance (2000) 84 Cal.App.4th 1430, 1440; see, e.g., Shisler v. Sanfer Sports Cars, Inc. (2006) 146 Cal.App.4th 1254, 1261–1262 [defendant's repeated use of mail, e-mail, or a telephone, in a one-time transaction of selling a good to a California buyer, failed to establish minimum contacts, absent an ongoing business relationship, or reaching out to the forum for the transaction or for other business opportunities].)

Here, Defendant challenges jurisdiction on the basis that it is a non-resident of California, as conceded by Plaintiff in the complaint. (Compl. ¶ 7.) Defendant contends that it has satisfied its burden to establish its status as a non-resident by citing Plaintiff's complaint, which is a judicial admission. Defendant also provides evidence that it lacks any contacts with California. (Baker Decl., ¶ 2.)

It is Plaintiff's initial burden to establish minimum contacts necessary for the Court to exercise personal jurisdiction. (In re Auto, 135 Cal. App. 4th at p. 110 ["Although the defendant is the moving party, the plaintiff must carry the initial burden of demonstrating facts by a preponderance of evidence justifying the exercise of jurisdiction in California."]) As set forth below, the Court finds that Plaintiff has not satisfied its burden to establish minimum contacts necessary for the Court to exercise personal jurisdiction.

Plaintiff argues that Defendant is subject to specific personal jurisdiction under the minimum-contacts analysis because it purposefully availed itself of California, the controversy arises out of and relates to those California contacts, and the exercise of jurisdiction is reasonable. In support, Plaintiff points to the California choice-of-law provision and the arbitration provision set forth in section 12.5 of the parties' Billing Agreement:

Any action to enforce or interpret this Agreement or to resolve disputes between the Parties shall be settled by arbitration in accordance with the rules of JAMS. Any Party may commence arbitration by sending a written demand for arbitration to the other Party. Such demand shall set forth the nature of the matter to be resolved by arbitration. Arbitration shall be conducted at Los Angeles, California, or such other place as the Parties mutually agree. The substantive law of the State of California shall be applied by the arbitrator to the resolution of the dispute. Reasonable discovery shall be allowed in the discretion of the arbitrator. The Parties shall share equally all initial costs of arbitration. The prevailing Party shall be awarded reasonable attorney fees, costs, and expenses incurred in connection with the arbitration. All decisions of the arbitrator shall be final, binding, and conclusive on all Parties. Judgment may be entered upon any such decision in accordance with applicable law in any court having jurisdiction thereof.

(Compl., Ex. 1 at p. 7, § 12.5.)

Plaintiff contends that Section 12.5 of the Billing Agreement operates as Defendant's consent to the jurisdiction of California. Plaintiff asserts that *Fireman's Fund Ins. Co. v. National Bank for Cooperatives* (9th Cir. 1996) 103 F.3d 888 is on point. The Court disagrees.

In Fireman's Fund, the court held that the non-resident defendant had purposefully availed itself of the privilege of conducting activities in California by: (1) entering into an agreement with a California corporation and consenting to arbitrate disputes over that agreement in California; (2) entering California to arbitrate its dispute with the California corporation; and (3) participating in adversarial bankruptcy proceedings against the California corporation in the U.S. Bankruptcy Court for the Northern District of California. (Id. at 894.) The court concluded that the non-resident defendant had not only taken advantage of services offered in California, it also had created continuing obligations between itself and residents of the forum. (Ibid.)

Fireman's Fund is distinguishable because, in that case, the arbitration provision was not found sufficient, by itself, to support jurisdiction, and the non-resident defendant obtained an arbitration award in California against a California corporation. (Id. at p. 890-891.) Here, the parties have not engaged in arbitration, there has been no arbitration award, and there are no similar continuing obligations.

Next, Plaintiff argues, "A defendant's agreement that California law will govern is a 'purposeful availment' of the benefits and protections of California law and is a relevant contact for jurisdictional purposes," citing *Burger King*, supra, 471 U.S. at pp. 481-482. (Opp at p. 4:11-14.) But the court in *Burger King* specifically stated that, "[S]uch a provision standing alone would be insufficient to confer jurisdiction..." (Id. at p. 482.) In that case, the court explained that the contract provision was but one factor to be considered: "it is these factors—prior negotiations and contemplated future consequences, along with the terms of the contract and the parties' actual course of dealing—that must be evaluated in determining whether the defendant purposefully established minimum contacts within the forum." (Id. at pp. 478-479.) There, the contract provision, when combined with the "20-year interdependent relationship, reinforced the deliberate affiliation with the forum State and the reasonable foreseeability of possible litigation there." (Id. at p. 482.) In contrast, Plaintiff has not shown that any similar facts are present here.

Plaintiff contends that Defendant's commercial transmissions with California residents support personal jurisdiction. The

Court disagrees. The following evidence, relied upon by Plaintiff, does not show that Defendant purposefully availed itself of California:

Plaintiff's

workforce was originally heavily based in California, and the team assigned to the Defendant's account was based in and around Los Angeles until April 29, 2022. [6/24/26 Suppl. Burke Decl., ¶¶ 2-8.]; Defendant's prior billing company was also based in Southern California. [6/24/26 Suppl. Burke Decl., ¶ 9.]; Plaintiff's California employees routinely exchanged files with the Defendant's employees over the internet through email and direct messaging daily. [6/24/26 Suppl. Burke Decl., ¶ 10.]; Defendant accepts and treats California residents in its programs in Dickson, Tennessee, and has done so since at least 2020. [6/24/26 Suppl. Burke Decl., ¶ 12, Ex. 40.]; and Plaintiff's fees for processing the Defendant's claims for treating four California residents remain unpaid and are included in the unpaid balance at issue here. [6/24/26 Suppl. Carpenter Decl., ¶¶ 2-5, Ex. 40].

(Opp. at p. 2-3.)

The above evidence does not assist Plaintiff because it concerns Plaintiff's contacts with California, not Defendant's, and confirms that Defendant conducts its business out-of-state in Tennessee. Plaintiff's argument is contrary to the well-established principle that the defendant's relationship with the forum must arise out of contacts that the defendant itself creates with the forum, not contacts between the plaintiff or third parties and the forum State. (*Walden v. Fiore* (2014) 571 U.S. 277, 277.) Additionally, Plaintiff presents no authority that, when a Tennessee business provides services to a non-resident customer in Tennessee, that business automatically becomes subject to the jurisdiction of the customer's home state.

Although not addressed in Defendant's motion to quash, Plaintiff addresses Defendant's reliance on *Global Packaging, Inc. v. Superior Court* (2011) 196 Cal.App.4th 1623 set forth in Defendant's opposition to Plaintiff's ex parte application for the issuance of a right to attach order. But Plaintiff misstates Defendant's argument on this point. (Opp., p. 11.) Defendant's argument is that the Billing Agreement designates arbitration as the forum, which could be conducted anywhere by agreement, but otherwise in Los Angeles, i.e. the venue, and that because the forum is not designated as a California court, there is no implied consent to jurisdiction. The Court agrees

with Defendant's position in reply regarding Global Packaging. (See Reply at p. 2-3.)

In Global Packaging, the court noted that, while a "forum-selection clause . . . is presumed valid," the trial court improperly "took a clause referring to 'venue,' translated 'venue' into 'forum,' and then extended 'forum' to include personal jurisdiction." (Id. at p. 1635.) Further, the court stated that the defendant could not be haled into California on the basis that the contract contained a venue-selection clause. (Id. at p. 1633.)

Here, section 12.5 of the Billing Agreement does not designate California as the forum for disputes. (See Compl., Ex. 1, § 12.5.) It designates Los Angeles, California as the default venue for arbitration unless the parties agreed otherwise. (Id.) Section 12.5 does not contain a consent to California personal jurisdiction by Defendant. (Id.)

The Court further agrees with Defendant that *Bernard Construction Co. v. Municipal Court* (1975) 49 Cal.App.3d 710, 721 is not contrary to Global Packaging as Plaintiff asserts. In *Bernard*, the court held that a provision that "any action relating to this lease shall be instituted and prosecuted in the courts in Los Angeles County" was "an unequivocal consent to the jurisdiction of the California courts. The waiver of the 'right to change of venue' [did] not detract from the effect of this consent; it merely precludes either party from seeking to change the place of trial to another court of this state." (Id. at p. 720-721.) *Bernard* is not contrary to Global Imaging and does not assist Plaintiff.

b.

Websites

In assessing whether an out-of-state defendant's operation of a website constitutes purposeful availment, courts examine whether the website targets California residents and, if not, whether interactivity with Internet users allows the out-of-state defendant to conduct business with California residents or just passively make information available for minimal interactivity. (*Jacqueline B. v. Rawls L. Grp., P.C.* (2021) 68 Cal.App.5th 243, 254.)

Posting content on an Internet website does not

confer nationwide personal jurisdiction, but instead defendants must have manifested an intent to target the forum state. (*Burdick v. Superior Court* (2015) 233 Cal.App.4th 8, 25.)

In the context of internet activity for jurisdictional purposes, the California Supreme Court adopted the “sliding scale” test set forth as follows:

At one end of the spectrum are situations where a defendant clearly does business over the Internet. If the defendant enters into contracts with residents of a foreign jurisdiction that involve the knowing and repeated transmission of computer files over the Internet, personal jurisdiction is proper. [Citation.] At the opposite end are situations where a defendant has simply posted information on an Internet Web site which is accessible to users in foreign jurisdictions. A passive Web site that does little more than make information available to those who are interested in it is not grounds for the exercise [of] personal jurisdiction. [Citation.] The middle ground is occupied by interactive Web sites where a user can exchange information with the host computer. In these cases, the exercise of jurisdiction is determined by examining the level of interactivity and commercial nature of the exchange of information that occurs on the Web site.

(*Pavlovich*, supra, 29 Cal.4th at p. 274, quoting *Zipco Mfg. Co. v. Zipco Dot Com, Inc.* (W.D.Pa. 1997) 952 F. Supp. 1119, 1124.)

The “operation of an interactive website does not, by itself, establish express aiming... [b]ut operating a website ‘in conjunction with ‘something more’—conduct directly targeting the forum—is sufficient’ to satisfy the express aiming prong.” (*Herbal Brands, Inc. v. Photoplaza, Inc.* (9th Cir. 2023) 72 F.4th 1085, 1091-1092.) “When the website itself is the only jurisdictional contact, [the] analysis turns on whether the site had a forum-specific focus or the defendant exhibited an intent to cultivate an audience in the forum.” (*Id.* at p. 1092.) A non-resident defendant “expressly aimed” its conduct at a forum if, in its regular course of business, it sells physical product via interactive website and causes that product to be delivered to forum state. (*Id.* at p. 1088.)

In *Briskin*, the Ninth Circuit held that “an interactive platform ‘expressly aims’ its wrongful conduct toward a forum

state when its contacts are 'its own choice and not 'random, isolated, or fortuitous,'[Citation] even if that platform cultivates 'nationwide audience for commercial gain.' [Citation]." (Briskin v. Shopify, Inc. (9th Cir. 2025) 135 F.4th 739, 758 overruling AMA Multimedia, LLC v. Wanat, 970 F.3d 120.) In overruling AMA, the Briskin court explained that "AMA's rationale requiring a 'forum-specific focus' or 'differential targeting,' as the concept has been more recently described, is incorrect, and we now overrule it." (Briskin, supra, 135 F.4th at p. 758.)

In Snowney, the Supreme Court of California found that a Nevada hotel purposefully availed themselves of privilege of doing business in California through its website. (Snowney v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1070.) By touting the proximity of their hotels to California and providing driving directions from California to their hotels, defendants' website specifically targeted residents of California. (Id. at p. 1065.) The hotel also conceded that many of their patrons come from California and that some of these patrons undoubtedly made reservations using their Web site and they therefore purposefully derived a benefit from their Internet activities in California. (Ibid.)

Here, Plaintiff argues that Defendant purposefully availed itself of California through its website. The Court disagrees. None of Plaintiff's evidence shows that Defendant specifically targeted California residents or that the website is interactive, and the mere fact that Defendant's website was accessible to California residents is insufficient. (Pavlovich, 29 Cal.4th at p. 274, quoting Zippo, 952 F. Supp. 1119, 1124; Herbal Brands, 72 F.4th at pp. 1091-1092; Snowney, 35 Cal.4th at p. 1070.) Additionally, Plaintiff's only support for this argument is that the website states, "Please note that we may not be able to comply with requests to delete your personal information if it is necessary to . . . Comply with the California Electronic Communications Privacy Act. . . ." (Supp. Winsten Decl., Ex. 41, p. 24.) Plaintiff offers no authority or explanation as to why this would support a finding of purposeful availment, and the Court finds no such basis. Moreover, as Defendant points out in reply, Plaintiff's claims have nothing to do with Defendant's website.

Based on the foregoing, the Court finds that Plaintiff has not met its burden of demonstrating that exercising specific jurisdiction is appropriate.

Accordingly, Defendant's
motion to quash for lack of personal jurisdiction is GRANTED.

II. MOTION FOR RIGHT TO ATTACH ORDER AND TPO

Based on the foregoing, the motion
for right to attach is DENIED as MOOT on the basis that the Court lacks
jurisdiction, as set forth above.